



CHAPTER xxxiii.

An Act to confirm certain Provisional Orders of the Local Government Board for Ireland relating to the City of Dublin and the County of Louth (two). A.D. 1916.

[3rd August 1916.]

WHEREAS the Local Government Board for Ireland (hereinafter referred to as “the Local Government Board”) have made the Provisional Order set out in Schedule A hereto under the Public Health (Ireland) Acts 1878 to 1907 and the Provisional Orders set out in Schedules B and C hereto under the Local Government (Ireland) Act 1898:

And whereas it is requisite that the said Orders should be confirmed by Parliament and that the provisions herein contained should be enacted with reference to those Orders:

Be it therefore enacted by the King’s most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders set out in the schedules hereto are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. The Corporation of Dublin shall not under the powers of the Dublin (Lower Liffey Street) Order 1915 hereby confirmed purchase or acquire in any urban district any house which on the fifteenth day of December last was occupied either wholly or partially by thirty or more persons belonging to the working class as tenants or lodgers or except with the consent of the Restriction of power to take houses of working class.

[Ch. xxxiii.] *Local Government Board* [6 & 7 GEO. 5.]
(Ireland) *Provisional Orders Confirmation (No. 2) Act, 1916.*

A.D. 1916. Local Government Board any house which was not so occupied
— on the said fifteenth day of December but has been or shall be
subsequently so occupied.

If the said corporation acquire or appropriate any house or houses for the purposes of the said Order in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "working class" means mechanics artizans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own families and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Short title. **3.** This Act may be cited as the Local Government Board
(Ireland) *Provisional Orders Confirmation (No. 2) Act 1916.*

SCHEDULES.

A.D. 1916.

SCHEDULE A.

CITY OF DUBLIN.

*Provisional Order to enable the Corporation of Dublin
to put in force the Compulsory Clauses of the
Lands Clauses Acts.*

Dublin.

WHEREAS the Right Honourable the Lord Mayor Aldermen and Burgesses of Dublin acting by the town council (in this Order referred to as "the corporation") as the urban sanitary authority for the city of Dublin require to purchase and take the lands described in the schedule hereto for the purpose of widening and improving a street known as Lower Liffey Street:

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of any other power enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely:—

1. The corporation shall be empowered to put in force with reference to the lands described in the schedule hereto and for the purposes aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them.

2. The costs and expenses of the corporation and of the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the corporation as part of their expenses under the Public Health (Ireland) Acts 1878 to 1907.

3. This Order may be cited as the Dublin (Lower Liffey Street) Order 1915.

A.D. 1916.

Dublin.

SCHEDULE.

PARISH OF ST. MARY AND CITY OF DUBLIN.

Refer- ence to deposited Plan.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
5	Plot of ground dwelling-house shop and small yard known as number 36 Lower Liffey Street containing 4p. 9sq. yds.	Corporation of Dublin.	The Fairfield Estate Arthur and Sophia Fairfield and others William Hegarty.	William Hegarty.
6	Plot of ground dwelling-house shop and small yard known as number 37 Lower Liffey Street containing 1p. 29sq. yds.	Same	Same.	—
7	Plot of ground dwelling-house and shop known as number 38 Lower Liffey Street containing 1p. 1sq. yd.	Same	Same.	—
8	Public highway Lower Liffey Street containing 11p. 3sq. yds.	Same	Corporation of Dublin.	Corporation of Dublin.
9	Plot of ground dwelling-house shop yard and out-offices known as numbers 43 and 44 Lower Ormond Quay containing 5p. 13sq. yds.	Same	The Fairfield Estate Arthur and Sophia Fairfield and others Joseph F. Kaitcher.	—
10	Public highway Lower Ormond Quay containing 1p. 10sq. yds.	Same	Corporation of Dublin.	Corporation of Dublin.

Given under our seal of office this twenty-second day of October in the year of our Lord one thousand nine hundred and fifteen.

(L.S.)

(Signed) H. A. ROBINSON.

SCHEDULE B.

A.D. 1916.

COUNTY OF LOUTH.

Provisional Order to transfer the business of the Trustees for the Fane Drainage District to the County Council of Louth. *Louth.*

WHEREAS the Trustees for the Fane Drainage District were appointed under the Drainage (Ireland) Act 1842 and the said district is situate wholly within the county of Louth : 5 & 6 Vict.
c. 89.

And whereas it appears proper to Us the Local Government Board for Ireland (in this Order referred to as "the Local Government Board") to make an Order transferring to the county council of Louth the business arising in their county under the Drainage and Navigation (Ireland) Acts 1842 to 1857 of the Trustees for the said district :

And whereas the said Trustees have consented to the making of this Order :

Now therefore We the Local Government Board in pursuance of the powers given to Us by section 20 of the Local Government (Ireland) Act 1898 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect:— 61 & 62 Vict.
c. 37.

1. There shall be transferred to the county council of Louth the business arising in their county under the Drainage and Navigation (Ireland) Acts 1842 to 1857 of the Trustees for the Fane Drainage District.

2. The costs and expenses of the Local Government Board in respect of the application for preparation making and confirmation of this Order shall be paid by the county council and may be raised equally over the whole county.

3. This Order may be cited as the Fane Drainage Order 1916.

Given under our seal of office this thirteenth day of April in the year of our Lord one thousand nine hundred and sixteen.

(L.S.)

(Signed) H. A. ROBINSON.

A.D. 1916.

SCHEDULE C.

COUNTY OF LOUTH.

Louth.

*Provisional Order to transfer the business of the
Trustees for the Wottonstown Drainage District to the
County Council of Louth.*

5 & 6 Vict.
c. 89.

WHEREAS the Trustees for the Wottonstown Drainage District were appointed under the Drainage (Ireland) Act 1842 and the said district is situate wholly within the county of Louth:

And whereas it appears proper to Us the Local Government Board for Ireland (in this Order referred to as "the Local Government Board") to make an Order transferring to the county council of Louth the business arising in their county under the Drainage and Navigation (Ireland) Acts 1842 to 1857 of the Trustees for the said district:

And whereas the said Trustees have consented to the making of this Order:

61 & 62 Vict.
c. 37.

Now therefore We the Local Government Board in pursuance of the powers given to Us by section 20 of the Local Government (Ireland) Act 1898 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect:—

1. There shall be transferred to the county council of Louth the business arising in their county under the Drainage and Navigation (Ireland) Acts 1842 to 1857 of the Trustees for the Wottonstown Drainage District.

2. The costs and expenses of the Local Government Board in respect of the application for preparation making and confirmation of this Order shall be paid by the county council and may be raised equally over the whole county.

3. This Order may be cited as the Wottonstown Drainage Order 1916.

Given under our seal of office this thirteenth day of April in the year of our Lord one thousand nine hundred and sixteen.

(L.S.)

(Signed) H. A. ROBINSON.

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